

Sample_FIR_Case_Report_Sexual_Assault.pdf

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HIGH PRIORITY

Parties in the Dispute

Accused, Complainant, Victim — names not disclosed

Plain-Language Summary

Following the alleged assault, the victim informed a trusted individual, and the matter was brought before the police. The complainant requests that the allegations be investigated, evidence be collected in accordance with law, the victim receive appropriate medical care and support. This is a major-severity matter. This falls under Criminal/Violent as it involves criminal offenses, violence, or matters affecting life and liberty. Primary constitutional articles engaged: Article 21, Article 22, Article 20.

Case Classification

Legal Category	Criminal/Violent
Case Type	Violent
Severity	Major
Vulnerability	High
Influence	Low
Predicted Priority	

Constitutional Articles Applied

Article 21

Primary

Protection of Life and Personal Liberty

Article 22

Primary

Protection Against Arrest and Detention

Article 20

Primary

Protection in Respect of Conviction for Offences

Article 14

Secondary

Equality Before Law

Article 17

Secondary

Abolition of Untouchability

Article 23

Secondary

Prohibition of Traffic in Human Beings and Forced Labour

Article 24

Secondary

Prohibition of Employment of Children in Factories

Article 39A

Secondary

Equal Justice and Free Legal Aid

Legal Summary

The State has a non-derogable duty under Article 21 to protect the right to life and personal liberty of every person. In violent crimes, the judiciary must ensure: (a) immediate protection of the victim and witnesses,

(b) preservation of evidence, (c) expeditious trial to prevent secondary victimisation, and (d) enforcement of the victim's right to a speedy trial as an integral part of Article 21.

Priority Rules Applied

RULE 1 — Major Injury → High Priority (Article 21): Bodily integrity and the right to health under Article 21 are seriously compromised. Strong urgency is constitutionally required. **RULE 2 — High Vulnerability → Elevated Priority (Doctrine of Parens Patriae):** The state has a special duty to protect vulnerable persons. Articles 15, 39, and 39A require the court to ensure that vulnerable litigants are not disadvantaged by delay. **RULE 4 — Violent Crime → Article 21 Primacy:** Criminal matters involving violence directly implicate the right to life and personal liberty. The state's duty under Article 21 requires urgent judicial attention. **FINAL DETERMINATION:** Based on the above constitutional rules and the extracted case features, the priority assigned is **High**. This determination represents the impartial state's assessment of the urgency required to ensure that constitutional rights are protected and justice is delivered without undue delay.

Cases involving violent crime directly implicate the most fundamental right under the Constitution — the right to life. The state's failure to accord such cases the highest priority would constitute a violation of its affirmative obligation under Article 21 to protect life and ensure access to justice.

State's Perspective

STATE'S CONSTITUTIONAL ASSESSMENT (Neutral, Unbiased Analysis from the Perspective of the Judiciary) This assessment is prepared from the standpoint of an impartial state adjudicating disputes under the Constitution of India. The analysis identifies the constitutional rights engaged, the state's corresponding duties, and the appropriate priority that a fair and unbiased judiciary should accord to this matter. **I. SUBJECT MATTER** **Parties:** Accused, Complainant, Victim — names not disclosed **Legal Category:** Criminal/Violent **Brief Description:** Following the alleged assault, the victim informed a trusted individual, and the matter was brought before the police. The complainant requests that the allegations be investigated, evidence be collected in accordance with law, the victim receive appropriate medical care and support. This is a major-severity matter. This falls under Criminal/Violent as it involves criminal offenses, violence, or matters affecting life and liberty. Primary constitutional articles engaged: Article 21, Article 22, Article 20. **Extracted Parameters:** Severity = Major, Vulnerability = High, Influence/ Power Imbalance = Low **II. CONSTITUTIONAL RIGHTS ENGAGED** The following constitutional provisions are relevant to this matter: - **[PRIMARY]** Article 21 — Protection of Life and Personal Liberty: No person shall be deprived of his life or personal liberty except according to procedure established by law. - Key principles: Right to life includes right to live with dignity, Right to a speedy trial, Right to health and medical care, Right to fair procedure, Right to safety and security, Due process and procedural fairness - **[PRIMARY]** Article 22 — Protection Against Arrest and Detention: No person who is arrested shall be detained in custody without being informed of the grounds of arrest, nor shall he be denied the right to consult and be defended by a legal practitioner of his choice. Every person detained under preventive detention must be informed of the grounds of detention. - Key principles: Right to be informed of grounds of arrest, Right to consult a lawyer, Safeguards against arbitrary detention, Preventive detention procedural safeguards - **[PRIMARY]** Article 20 — Protection in Respect of Conviction for Offences: No person shall be convicted of any offence except for violation of a

law in force at the time of the act. No person shall be prosecuted and punished for the same offence more

than once. No person accused of any offence shall be compelled to be a witness against himself. - Key

principles: No ex post facto criminal law, No double jeopardy, Protection against self-incrimination -

****[SECONDARY]** Article 14 — Equality Before Law**: The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India. - Key principles:

Equality before law, Equal protection of laws, Reasonable classification is permitted, Anti-arbitrariness -

****[SECONDARY]** Article 17 — Abolition of Untouchability**: Untouchability is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law. - Key principles: Abolition of untouchability, Enforcement

of disabilities is an offence, Protection of SC/ST communities - ****[SECONDARY]** Article 23 —

Prohibition of Traffic in Human Beings and Forced Labour**: Traffic in human beings and begar and other similar forms of forced labour are prohibited. Any contravention of this provision shall be an offence punishable in accordance with law. - Key principles: Prohibition of human trafficking, Prohibition of forced

labour and begar - ****[SECONDARY]** Article 24 — Prohibition of Employment of Children in

Factories**: No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment. - Key principles: No child labour below 14 in hazardous

work, Protection of children from exploitation - ****[SECONDARY]** Article 39A — Equal Justice and Free Legal Aid**: The State shall secure that the operation of the legal system promotes justice on a basis of equal opportunity, and shall provide free legal aid to ensure that no citizen is denied opportunities to

secure justice due to economic or other disability. - Key principles: Free legal aid, Equal opportunity in the legal system, Justice for the economically disadvantaged ### III. SEVERITY & URGENCY

ASSESSMENT **Primary Article:** Article 21 **Analysis:** The right to life under Article 21 includes the right to live with dignity and the right to health. Major injuries — especially those requiring

hospitalisation, causing permanent disability, or posing life-threatening complications — constitute a serious interference with personal liberty and bodily integrity. The State must ensure prompt access to medical care, investigation of the incident, and accountability. Each day of delay risks permanent

aggravation of the harm. **Urgency Classification:** High — bodily integrity and dignity are seriously

compromised. ### IV. STATE'S DUTY UNDER THE CONSTITUTION The State has a non-derogable duty under Article 21 to protect the right to life and personal liberty of every person. In violent crimes, the judiciary must ensure: (a) immediate protection of the victim and witnesses, (b) preservation of evidence,

(c) expeditious trial to prevent secondary victimisation, and (d) enforcement of the victim's right to a

speedy trial as an integral part of Article 21. ### V. VULNERABILITY & POWER BALANCE

ASSESSMENT **Vulnerability Level:** High This indicates: ['Minors / Children', 'Pregnant Women',

'Elderly / Senior Citizens', 'Disabled Persons', 'Scheduled Castes (SC)', 'Scheduled Tribes (ST)', 'Other Backward Classes (OBC)', 'Adivasis / Tribals', 'Dalits', 'Economically Weaker Sections (EWS)', 'Below Poverty Line (BPL)', 'Daily Wage Workers', 'Agricultural Labourers', 'Domestic Workers', 'Migrant

Workers', 'Unorganised Sector Workers', 'Bonded Labourers', 'Sex Workers', 'Human Trafficking Survivors', 'Refugees / Asylum Seekers', 'Homeless Persons', 'Orphans', 'Single Mothers / Widows',

'Persons in Custody', 'Victims of Domestic Violence', 'Victims of Sexual Assault', 'Victims of Torture']

Constitutional Protection: Articles 14, 15, 15(3), 15(4), 15(5), 16(4), 17, 23, 24, 39, 39A, 41, 46, and the Directive Principles under Part IV mandate special protection for vulnerable groups. The Doctrine of

Parens Patriae obligates the state to act as guardian for those who cannot protect themselves. **Judicial

Duty:** The court must adopt a protective, sensitised approach. Vulnerable litigants are entitled to: (a) in-camera proceedings where appropriate, (b) assistance of counsel if unrepresented, (c) protection from

intimidation, (d) expedited hearings to prevent secondary trauma, and (e) rehabilitation and compensation

directions where applicable. ****Influence Level:**** Low Individuals, small businesses, or parties of

comparable standing ****Constitutional Concern:**** Parties are of broadly comparable standing. Article 14 equality concerns are less acute, though the court must still ensure procedural fairness. ****Recommended Countermeasure:**** Standard procedural safeguards apply. The court should proceed with the matter in regular course, without special countermeasures. **### VI. APPLICABLE CONSTITUTIONAL**

DOCTRINES & PRINCIPLES - ****Doctrine of Proportionality****: Any state action restricting rights must be proportionate to the aim sought — it must be necessary, suitable, and not excessive. - Application to this case: Used to assess whether the priority assigned is proportionate to the gravity of the rights violation. - ****Doctrine of Parens Patriae****: The state has a duty to protect those who cannot protect themselves, such as minors, disabled persons, and the mentally ill. - Application to this case: Critical for cases involving vulnerable victims — the state must act as guardian. - ****Rule of Law****: Every person, including the State, is subject to the law; no one is above it. Government action must have legal authority. - Application to this case: Foundational principle engaged in every challenge to executive or legislative action. **### VII.**

PRIORITY ASSESSMENT & JUSTIFICATION ****Assigned Priority:**** High ****Category Rationale:**** Cases involving violent crime directly implicate the most fundamental right under the Constitution — the right to life. The state's failure to accord such cases the highest priority would constitute a violation of its affirmative obligation under Article 21 to protect life and ensure access to justice. **### VIII. FINAL OBSERVATION** From the perspective of an unbiased state adjudicating under the Constitution of India, this matter has been assigned ****High Priority****. This is constitutionally appropriate and reflects the gravity of the rights engaged. The court is directed to list this matter expeditiously, ensuring that no procedural delay undermines the constitutional rights at stake. The State must accord this case the attention and resources commensurate with its priority level.

Doctrines Engaged

Doctrine of Proportionality — Any state action restricting rights must be proportionate to the aim sought — it must be necessary, suitable, and not excessive.

Doctrine of Parens Patriae — The state has a duty to protect those who cannot protect themselves, such as minors, disabled persons, and the mentally ill.

Rule of Law — Every person, including the State, is subject to the law; no one is above it. Government action must have legal authority.

Rights Balancing Analysis

****Primary Interest — Right to Life & Bodily Integrity (Article 21):**** The severity level 'Major' indicates that the right to life or physical integrity has been seriously compromised. Under Article 21, this is the weightiest constitutional interest and must take precedence over all other considerations. The state's duty to protect life is non-derogable and non-delegable. ****Assessment:**** The High priority correctly reflects the primacy of Article 21 rights. This is constitutionally appropriate and proportionate to the gravity of the harm. ****Vulnerability Analysis — Special State Obligation:**** A vulnerable party is involved. The Doctrine of Parens Patriae and Articles 15(3), 15(4), 39, and 39A impose a heightened duty on the state to protect the vulnerable. This factor strongly supports High priority to prevent further harm or injustice.

****Category-Specific Analysis — Criminal/Violent:**** This category involves the most serious engagement

of constitutional rights — the right to life, liberty, and safety of persons. The High priority assigned is constitutionally mandated.

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